EXCEL LEGACY REALTY GROUP

TRUST SERVICES • NEWLY REVISED EDITION

Appointment & Acceptance of Personal Property Trustee

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EXCEL LEGACY REALTY GROUP

APPOINTMENT AND ACCEPTANCE OF PERSONAL PROPERTY TRUSTEE

For [Name of Trust], Dated [Effective Date]

STATE OF [Governing State] COUNTY OF [County]

1. Appointment of Initial Trustee(s) by 100% of Beneficiaries. The undersigned Beneficiary(ies) represent and certify that together they hold one hundred percent (100%) of the beneficial interests under that certain Declaration of Trust and Personal Property Trust Agreement dated [Effective Date], known as [Name of Trust], and hereby appoint: • [Trustee #1 Full Legal Name], Mailing Address: [Street, City, State ZIP]; • [Trustee #2 Full Legal Name (if Co-Trustee)], Mailing Address: [Street, City, State ZIP], to serve as fiduciary Trustee(s) of said Trust in accordance with the written directions of the Beneficiaries/Directors and the terms of the Declaration of Trust.

2. Appointment of Successor Trustee. If an initial Co-Trustee is unable to serve due to death, incapacity, or resignation, the remaining Co-Trustee shall continue to serve unless otherwise directed by 100% of the Beneficiaries. If no initial Trustee is able to serve, the Beneficiaries hereby appoint [Successor Trustee Full Legal Name], Mailing Address: [Street, City, State ZIP], as Successor Trustee. If no Successor Trustee is able to act, the duties of Trustee shall devolve upon a replacement Trustee appointed by the Beneficiaries.

3. Schedule of Beneficiaries Approving Appointment (Totaling 100%). • [Beneficiary #1 Name]: [____%] undivided interest • [Beneficiary #2 Name]: [____%] undivided interest • [Beneficiary #3 Name]: [____%] undivided interest

4. Acceptance of Trustee & Successor Trustee Appointment. TO THE BENEFICIARIES OF [NAME OF TRUST]: Effective [Effective Date], the undersigned: Initial Trustee(s): [ ] ACCEPT [ ] DECLINE appointment as Trustee(s) under the Trust. Successor Trustee: [ ] ACCEPTS [ ] DECLINES contingent appointment as Successor Trustee.

_____ [Beneficiary #1 Name], Beneficiary

_____ [Beneficiary #2 Name (if any)], Beneficiary

_____ [Trustee #1 Name] Initial Trustee

_____ [Trustee #2 Name (if Co-Trustee)] Initial Co-Trustee

_____ [Successor Trustee Name] Successor Trustee

_____ WITNESS (Print & Sign)